

Court No. - 21

Case :- WRIT - C No. - 33865 of 2024

Petitioner :- M/S Maa Durga Dhaba

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Pramod Kumar Sinha

Counsel for Respondent :- Baleshwar Chaturvedi, C.S.C., Krishna Agarawal

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Anish Kumar Gupta, J.

1. Supplementary affidavit filed today is taken on record.
2. The Executive Engineer concerned is directed to file his personal affidavit by the next date and disclose how the procedure prescribed under Clause 6.8 / 8.2 of the U.P. Electricity Supply Code, 2005 had been followed in making the final assessment.
3. Put up this matter as fresh on 13.11.2024.

Order Date :- 22.10.2024

Ashish Pd.

(Anish Kumar Gupta, J.) (Manoj Kumar Gupta, J.)

Court No. - 3

Case :- WRIT - C No. - 33865 of 2024

Petitioner :- M/S Maa Durga Dhaba

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Pramod Kumar Sinha

Counsel for Respondent :- Baleshwar Chaturvedi, C.S.C., Krishna Agarawal

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Jayant Banerji, J.

1. A personal affidavit of Executive Engineer, concerned has been filed in the Court today, is taken on record.
2. Counsel for the petitioner seeks a week's time to file his rejoinder.
3. List after a week.
4. After this order was passed the counsel for the petitioner insists that the matter be placed as fresh, which prayer is rejected.

Order Date :- 13.11.2024

Arti

Court No. - 39

Case :- WRIT - C No. - 33865 of 2024

Petitioner :- M/S Maa Durga Dhaba

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Pramod Kumar Sinha

Counsel for Respondent :- Baleshwar Chaturvedi, C.S.C., Krishna Agarawal

Hon'ble Siddhartha Varma, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Put up this case tomorrow i.e. on 5.3.2025.

Order Date :- 4.3.2025

PK

(Dr. Y.K. Srivastava, J.) (Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 33865 of 2024

Petitioner :- M/S Maa Durga Dhaba

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Pramod Kumar Sinha

Counsel for Respondent :- Baleshwar Chaturvedi, C.S.C., Krishna Agarawal

Hon'ble Siddhartha Varma, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

As prayed, put up tomorrow i.e. on 6.3.2025.

Order Date :- 5.3.2025

GS

(Dr. Y. K. Srivastava, J.) (Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 33865 of 2024

Petitioner :- M/S Maa Durga Dhaba

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Pramod Kumar Sinha

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.,Krishna Agarawal

Hon'ble Siddhartha Varma,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

As prayed, put up tomorrow i.e. on 07.03.2025 at 12.00 noon.

Order Date :- 6.3.2025

vkj

Court No. - 39

Case :- WRIT - C No. - 33865 of 2024

Petitioner :- M/S Maa Durga Dhaba

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Pramod Kumar Sinha

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.,Krishna Agarawal

Hon'ble Siddhartha Varma,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

1. Heard learned counsel for parties.
2. The instant writ petition has been filed primarily for quashing the impugned final assessment order/letter no.2338 VI. VI. KH. Tun. /dated 29.08.2024 issued by respondent no.3.
3. Upon an allegation being made by the electricity department that the petitioner was indulging in theft of electricity, a provisional assessment order was passed on 11.06.2024. Against that order the petitioner approached the High Court by means of Writ-C No.25203 of 2024 (M/S Maa Durga Dhabad Vs. State of UP and others) in which following order was passed:-

"1. The instant petition has been filed praying for quashing of the notice of provisional assessment dated 11.06.2024 and for a direction to respondent nos. 2 and 3 to restore the electricity connection to the petitioner's premises.

2. Learned counsel for the petitioner submits that the petitioner has already filed objection against the notice of provisional assessment, but it has not been decided so far nor the electricity connection is being restored. He submits that the petitioner is ready to pay 50% of the amount shown in the notice of provisional assessment without prejudice to its rights and contentions and the electric supply be directed to be restored.

3. Sri Baleshwar Chaturvedi, learned counsel appearing for the respondent-Electricity Department, submits that the order of final assessment would be passed expeditiously and has no objection in restoring the electric supply provided 50% of the amount as proposed in the notice of provisional assessment is deposited.

4. Accordingly, the writ petition is disposed of as follows:-

a) Respondent no. 3 will conclude the proceedings of assessment, expeditiously, preferably within six weeks from today.

b) Upon deposit of 50% of the amount as proposed in the notice of provisional assessment, the electric connection to the petitioner's premises would be restored without prejudice to its rights and contentions.

c) The deposited amount would be subject to the order of final assessment that would be passed by the Assessing Officer in pursuance of the notice of provisional assessment."

4. However, before the petitioner would comply with the directions contained in the order dated 05.08.2024 passed in Writ-C No.25203 of 2024, a final assessment was made by the electricity department which came to be challenged by means of the instant writ petition.

5. In the instant case when on 22.10.2024 the Executive Engineer concerned was directed to file his personal affidavit by the next date fixed in the case and he was to disclose as to how the procedure prescribed under Clause 6.8/8.2 of the UP Electricity Supply Code, 2005 had been followed in making the final assessment.

6. It is the case of the petitioner that realizing that the final assessment was mistakenly arrived at, the final assessment order was recalled on 07.11.2024.

7. Learned counsel for the electricity department has however submitted that when the final assessment order was recalled on 07.11.2024, the petitioner was asked to present himself on 26.11.2024. He further states that since the petitioner had not appeared on that date, no final assessment could be made.

8. Be that as it may, we are of the view that the petitioner may now appear before the Executive Engineer concerned on 19.03.2025, and on that date after due compliance of the provisions of Clause 6.8/8.2 of the UP Electricity Supply Code, 2005, final assessment order be passed within a period of one month from the date fixed by us.

9. With these observations, the writ petition stands **disposed of**.

Order Date :- 7.3.2025
Shahroz

(Dr. Y.K. Srivastava,J.) (Siddhartha Varma,J.)